IN THE SUPERIOR COURT OF DEKALB COUNTY
STATE OF GEORGIA

[redacted] L. [redacted]

Plaintiff,

v.

FIRST ACCEPTANCE INSURANCE COMPANY OF GEORGIA, INC. et al.

Defendants.

Civil Action File No.

25CV10635

AFFIDAVIT OF DONALD KAISER

STATE OF TENNESSEE
COUNTY OF DAVIDSON

Personally, appeared before the undersigned officer, duly authorized to administer oaths, DONALD KAISER, who after first being sworn, states as follows:

1. I am Senior Director Claims Casualty for First Acceptance Services, Inc., which is the claims firm for First Acceptance Insurance Company of Georgia, Inc. ("FAGA"). I am over the age of 18 and suffer from no intoxication or mental defect. I have personal knowledge of the facts asserted herein. I provide this affidavit in support of FAGA's Motion to Dismiss the above-referenced lawsuit.

2. Prior to Plaintiff's purchase of the subject policy on or around January 18-20, 2024, the insurance agency and related corporate entities ("Agency") located at 3910 Flat Shoals Parkway, Suite 102, [redacted], Georgia 30034 and operating under the name "Acceptance Insurance," where Plaintiff alleges she procured the subject policy, was sold to a wholly independent company not owned, controlled, or managed by FAGA or any related First Acceptance Insurance parent or subsidiary.

3. At no relevant time was the Agency owned, controlled, or managed by FAGA or

any related First Acceptance Insurance entity.

4. At no relevant time was the Agency's employee or representative, Tonisha Simmons Huff, an employee, agent, or representative of FAGA or any related First Acceptance Insurance entity, and at no relevant time was Ms. Huff under the management, control, or supervision of FAGA or any related First Acceptance Insurance entity.

5. FAGA did not in any way participate in the preparation of Plaintiff's application for the Policy. FAGA underwrote and issued the subject policy based on the application documents provided to it.

6. The subject policy was underwritten by FAGA without deviation from the insurance application submitted by Plaintiff.

FURTHER AFFIANT SAITH NAUGHT.

Donald Kaiser

DONALD KAISER

Sworn to and subscribed before me this

2 day of January 2026.

NOTARY PUBLIC

VICKY SLAUGHTER
STATE OF TENNESSEE NOTARY PUBLIC
DAVIDSON COUNTY
MY COMMISSION EXPIRES 5-9-2026